

The Court is aware that the presence or absence of insurance could impact those discussions.

Currently, the Court is not inclined to stay the proceedings. It believes the parties should continue to move forward with discovery – especially given the contentious nature of the discovery proceedings to date – and working toward getting this matter ready for trial. The Court may consider continuing the mandatory settlement conference (and possibly trial) date again if it appears that a resolution of the Ninth Circuit appeal is imminent.

Given the changing circumstances since the filing of the original motion and the Court's initial thoughts outlined above, the Court is open to hearing from the Parties regarding their thoughts on how best to proceed. The Court would also like an update on the status of the Ninth Circuit appeal, especially related to scheduling of argument (if any) and/or any deadlines wherein the Parties expect a ruling from the Ninth Circuit.

The Court notes that an Issue Conference was originally scheduled for 1:30 the same date as the hearing on this motion (Friday, July 10), and that a new Issue Conference date of January 15, 2027 1:30 p.m. in Dept. 32 (in person) was set by the court. **The court meant to vacate the July 10 2026 date when it set the January 15 2027 date, and does so now.**

Conclusion

Defendants' request for a continuance of the trial date is **denied as moot** given that the Court continued the trial date to January 26, 2027, while this motion was pending. The request to stay the matter is also **denied**.

The Issue Conference set for 1:30 p.m. on July 10, 2026 is vacated. The Issue Conference has been set for January 15, 2027 at 1:30 pm in Dept. 32.

Parties are advised to familiarize themselves with Dept. 32's Issue Conference Orders, available on the court's website.

2. 9:00 AM CASE NUMBER: C23-01988
CASE NAME: MATTHEW PARRY VS. GELCO FLEET TRUST
HEARING ON SUMMARY MOTION
FILED BY: MERCEDES-BENZ USA, LLC
TENTATIVE RULING:

Continued by the Court to August 21, 2026.